14253160 B: 11498 P: 4110 Total Pages: 11
06/18/2024 08:34 AM By: dsalazar Fees: $78.00
Rashelle Hobbs, Recorder, Salt Lake County, Utah
Return To: PARR BROWN GEE AND LOVELESS
101 SOUTH 200 EAST SUITE 700SALT LAKE CITY, UT 84111

When recorded, send notice to:
Rulon J. Harper
8201 W 5400 S
Salt Lake City, UT 84118

Tree Farm, LLC
2121 South 3600 West, Ste B
West Valley City, Utah 84119

Declaration and Notice of Vested Mining Use

Utah Code § 17-41-501 to -503, as amended

THIS DECLARATION AND NOTICE OF VESTED MINING USE (**"Declaration"**) is made as of the date below by the undersigned mine operators (the term "mine operator" includes any natural person, corporation, association, partnership, receiver, trustee, executor, administrator, guardian, fiduciary, agent, or other organization or representative, either public or private, including a successor, assign, subsidiary, related parent company, and predecessor in interest, all of which are collectively referred to herein as **"Declarants"**) of the real property legally described on Exhibit A attached hereto and incorporated herein by this reference (the **"Property"**).

Pursuant to Utah Code § 17-41-501(4), the undersigned Declarants hereby provide notice of a vested mining use on the Property as follows:

A. This Declaration is intended to be a declaration of a vested mining use on the Property in accordance with Utah Code §§ 17-41-501 to -503, as amended.

B. Declarants (individually or together) own or control the Property including, without limitation, the surface and subsurface estates, mineral estates, fee estates, leasehold estates, easement estates, undivided interests, and other mineral interests, rights, and leases comprising the Property, together with all rights, privileges, easements, tenements, hereditaments, rights of way, leases, licenses, and appurtenances that belong or appertain thereto including, without limitation, rights to minerals, water, water rights and water stock, buildings, structures, and other improvements.

C. A mining use, as defined in Utah Code § 17-41-101(16), existed or was conducted or was otherwise engaged in on the Property by Portland Cement Company of Utah, which changed its name to Utah Portland Quarries, Inc. (**"Portland Cement"**), and others, at least as early as the 1890s, before statehood, and well before Salt Lake County restricted or otherwise limited mining use in the area. Evidence of such prior mining operations is readily apparent from a physical inspection of the Property and historic records.

D. Beginning in 1992, and on various dates prior to October 1997, entities owned or controlled by Ira N. Sachs acquired the Property with the intent to mine it.

E. Since at least 1993, Mr. Sachs and his related entities, and Declarant Rulon J. Harper and his related entities, have operated in some form of joint venture relationship regarding the Property. Mr. Harper acquired portions of the Property from Mr. Sachs or entities owned or controlled by Mr. Sachs on various dates. Mr. Sachs and Mr. Harper entered into multiple agreements since 1993 regarding mining operations on the Property. Declarants (individually or together) exercise ownership or control over the entire Property.

F. In 1995, a Notice of Intention to Commence Large Mining Operations with respect to a portion of the Property (the **"Large Mine Permit"**) was filed with the Utah Department of Natural Resources' Division of Oil, Gas and Mining (**"DOGM"**) by Rock and Roll Land Company, Inc., as owner, and Harper Contracting, Inc., as operator. DOGM approved the Large Mine Permit in 1996 and the Large Mine Permit remains active today.

G. The Property has been continuously used or held for use for mining operations.

H. Commercial quantities of mineral deposits have been produced from the Property dating back to the earliest mining activity. In 1994, over 90,000 tons of minerals were mined from the Property. In 2009, over 725,000 tons of minerals were mined from the Property. In 2018, over 500,000 tons of minerals were mined from the Property.

I. Declarants qualify as "mine operators" under Utah Code § 17-41-101(13) because, as of January 1, 2019, Declarants or their predecessors in interest[1] (a) owned, controlled, or managed a mining use under the Large Mine Permit; and (b) had produced and continue to produce commercial quantities of a mineral deposit from the mining use.

J. Pursuant to Utah Code § 17-41-101(15), the Property is a part of the mining protection area and is entitled to all rights, benefits, and protections under Utah Code, Title 17, Chapter 41.

K. Pursuant to Utah Code § 17-41-501(3), the present or future boundary described in the Large Mine Permit does not limit the scope of the Declarants' vested mining rights and does not limit the protection provided under Utah law for a mining protection area.

L. Declarants reserve the right, pursuant to Utah Code § 17-41-502 to expand the vested mining use. Declarants may progress, extend, enlarge, grow, or expand the vested mining

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[1] Declarants Tree Farm, LLC, Tree Farm 2, LLC, Pharaoh's Glen Land Company, Inc., and Jesse R. Lassley are the successors in interest to P.G.L.C., LLC, R.R.L.C., LLC, Rock & Roll Land Company, Inc., Pharaohs Glen Land Company, Inc., Parleys Canyon Aggregate Company, Ira Sachs, Old Spanish Claim, L.C., Old Spanish Claim, L.L.C., Old Spanish Claim, LLC, who, together with Harper Contracting, Inc., Rulon Harper Construction, Inc. and Rulon J. Harper executed that certain Declaration of Vested Mining Use recorded as Entry No. 13131633 in the official records of Salt Lake County on November 22, 2019 at Book 10864, Pages 630 to 639. Declarant Tree Farm, LLC is also the successor in interest to Shaun Nacey and Marla Nacey, who executed that certain Supplemental Declaration and Notice of Vested Mining Use recorded as Entry No. 13586235 in the official records of Salt Lake County on March 4, 2021 at Book 11130, Pages 635-637. Declarant Mt. Aire 132, LLC is the successor in interest to P.G.L.C., LLC, and Mt. Aire 132, LLC executed and recorded that certain Supplemental Declaration and Notice of Vested Mining Use recorded as Entry No. 13822823 in the official records of Salt Lake County on November 12, 2021 at Book 11268, Pages 4414-4417.

use to any surface or subsurface land or mineral estate that the mine operator owns or controls, Utah Code § 17-41-502(1)(a); and Declarants may expand the vested mining use to any new land that (i) is contiguous and related in mineralization to surface or subsurface land or a mineral estate that the mine operator already owns or controls; (ii) contains minerals that are part of the same mineral trend as the minerals that the mine operator already owns or controls; or (iii) is a geologic offshoot to surface or subsurface land or a mineral estate that the mine operator already owns or controls, Utah Code § 17-41-502(1)(b). This Declaration and the description of the Property set forth in Exhibit A are not intended to incorporate all of the real property interests owned or controlled by the Declarants that Declarants have the right to include as part of Declarants' vested mining use. Declarants hereby reserve the right from time to time to: (a) remove all or portions of the Property from this Declaration and/or the mining protection area; (b) incorporate into this Declaration additional real property interests owned or controlled by Declarants; (c) add new land, as defined under Utah Code § 17-41-101(18), and pursuant to Utah Code § 17-41-502, to this Declaration; and/or (d) correct errors in the legal descriptions for the Property. Any such removal, addition, or correction hereunder shall be effective upon recording of an amendment or supplement to this Declaration. Any amendment or supplement to this Declaration to incorporate additional real property interests under subsection (b) of this paragraph as part of Declarants' vested mining use declared hereunder shall relate back to the date this Declaration is recorded.

M. The vested mining use declared hereunder shall run with and bind the land within the Property as provided by Utah Code § 17-41-501(2), subject only to express abandonment by written declaration according to Utah Code § 17-41-503.

N. This Declaration may be signed in counterparts. Declarants have reviewed and understand this Declaration and the underlying facts and agree that, to the best of their knowledge, the Declaration is correct.

Dated this 17th day of June, 2024.

[signatures on following page]

DECLARANTS

Tree Farm, LLC

By: Jesse Lassley
Its: Manager

Tree Farm 2, LLC

By: Jesse Lassley
Its: Manager

Mt. Aire 132, LLC

By: Jesse R. Lassley
Its: Manager

Pharaoh's Glen Land Company, Inc.

By: Jesse R. Lassley
Its: President

Jesse R. Lassley

An individual

STATE OF UTAH)
: ss.
COUNTY OF SALT LAKE)

On the 17 day of June, 2024, Jesse R. Lassley appeared before me who duly acknowledged and executed the above instrument in the capacities so stated.

CHANDLER GILES
Notary Public, State of Utah
Commission # 727265
My Commission Expires On
October 14, 2026

(seal)

Notary Public

DECLARANTS

Rulon Harper Construction, Inc.
sometimes dba Harper Contracting

By: _____
Its: President

Rulon J. Harper

_____
An individual

STATE OF UTAH)
: ss.
COUNTY OF Salt Lake)

On the 17 day of June, 2024, Rulon J. Harper appeared before me who duly acknowledged and executed the above instrument in the capacities so stated.

(seal)

AMBER PHILLIPS
Notary Public, State of Utah
Commission # 730554
My Commission Expires
4/12/2027

_____
Notary Public

EXHIBIT A
to Declaration of Vested Mining Use

[See attached]

EXHIBIT A

The "Property" referred to in the foregoing instrument is located in Salt Lake County, Utah, and is more particularly described as follows:

Parcel A:
THE SHALE AND LIMESTONE PLACER MINING CLAIM, a patented property, designated as Mineral Survey No. 5031 covering all or portions of the following described lands:
The East Half of the Southeast Quarter of Northeast Quarter (E½SE¼NE¼); Southwest Quarter of Southeast Quarter of Northeast Quarter (SW¼SE¼NE¼); Southeast Quarter of Southwest Quarter of Northeast Quarter (SE¼SW¼NE¼); West Half of East Half of Northwest Quarter of Southeast Quarter (W½E½NW¼SE¼); East Half of West Half of Northwest Quarter of Southeast Quarter (E½W½NW¼SE¼); Northwest Quarter of Southwest Quarter of Southeast Quarter (NW¼SW ¼SE¼); Northeast Quarter of Southeast Quarter of Southwest Quarter (NE¼SE¼SW¼); South Half of Southeast Quarter of Southwest Quarter (S½SE¼SW¼); ALL in and of Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, Situate in the Hot Springs Mining District, Salt Lake County, Utah.

Parcel B:
The patented placer mining claim and premises known as the COMPROMISE PLACER MINING CLAIM and covering the lands described as Lots numbered 4, 14, 15, 16, 17 and 18 in Section 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian; and also Lots numbered 1, 2, and 3 in Section 24, Township 1 South, Range 1 East, Salt Lake Base and Meridian, all situated in the Hot Springs Mining District, Salt Lake County, Utah.

Parcel C:
The patented placer mining claim and premises known as the UNION LIMESTONE QUARRY PLACER MINING CLAIM, Mineral Survey No. 5710, and covering the following described lands: West Half of the Southwest Quarter of the Southeast Quarter (W½SW¼SE¼); Northeast Quarter of the Southwest Quarter of the Southeast Quarter (NE¼SW¼SE¼); Northwest Quarter of the Southeast Quarter (NW ¼SE¼); and a portion of the East Half of the Southeast Quarter of the Southwest Quarter (E½SE¼SW¼), beginning at the South Quarter corner of Sec. 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, thence North 89°51'00" West 39.8 feet, thence North 57°26'00" West 735.8 feet, thence North 924.1 feet, thence South 89°58' East 660 feet, thence South 1320 feet to the point of beginning; all situated in Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian, the Hot Springs Mining District, Salt Lake County, State of Utah.

Parcel D:
The patented placer mining claims known as the PORTLAND CEMENT NO. 1, and the PORTLAND CEMENT NO. 2, Survey No. 4269, situated in the Hot Springs Mining District, Salt Lake County, State of Utah, in Sections 18 and 19, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel E:
The Northeast Quarter of the Southeast Quarter (NE¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel F:
All of Lots 2 and 6, Section 19, Township l South, Range 2 East, Salt Lake Base and Meridian.

Parcel G:
The Southwest Quarter of the Northeast Quarter; the Northwest Quarter of the Southeast Quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, also that portion of said Section 17, contained in the East half of the Northeast Quarter of said Section, lying West and North of the Right-of-Way owned by the Utah State Road Commission.

Parcel H:
The Southeast Quarter of the Southeast Quarter of Section 8, and the West half of the Southwest Quarter and the Southeast Quarter of the Southwest Quarter of Section 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian. Excepting therefrom that portion of said premises heretofore conveyed by deed executed by Hans Anderson and wife to George A. Olmstead and wife, dated November 8, 1899 and recorded in Book 5Q of Deeds at Page 335, of official records of Salt Lake County, Utah.

Parcel I:
Beginning at the Southwest corner of Section 9, Township 1 South, Range 2 East, Salt Lake Base and Meridian; thence South 89 degrees a 38 minutes West 200.5 feet; thence North 31 degrees 25 minutes 01 seconds East 2 feet; thence North 60 degrees 54 minutes East 268.45 feet; thence South 83 degrees 31 minutes East 240.35 feet; thence North 72 degrees 59 minutes East 110.95 feet; thence North 55 degrees 37 minutes 32 seconds East 145 feet more or less; thence South 218 feet more or less; thence West 500 feet more or less to the point of beginning.

Parcel J:
The Southeast Quarter of the Southwest Quarter of the Southeast Quarter (SE¼SW¼SE¼) of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel K:
The Northeast Quarter of the Southeast Quarter of Section 8, Township 1 South, Range 2 East Salt Lake Base and Meridian.

Parcel L:
The Southwest Quarter of the Southeast Quarter of Section 8, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel M:
The Northwest Quarter of the Northeast Quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel N:
Lot 5 of Section 18, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel O:
The West half of the Southwest quarter of Section 16, Township 1 South, Range 2 East, Salt Lake Base and Meridian.

Parcel P:
The South half of the Southeast quarter and the Northeast quarter of the Southeast quarter of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Lone Pine Claim and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No. 3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

Parcel Q:
Lots 1, 2, 7, 8, 9, and 10, Section 20, Township 1 South, Range 2 East, Salt Lake Base and Meridian, said Lots 1, 8 and 9 extending into and being also part of the West one-half of Section 21, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Last Chance Amended Claim, the Last Chance No. 2 Amended Claim and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No.3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

Parcel R:
Lots 3, 4, 5, 6, 11, and 12, Section 21, Township 1 South, Range 2 East, Salt Lake Base and Meridian, including all of the Last Chance Amended Claim, the Last Chance No. 2 Amended Claim, and the Old Spanish Amended Claim, in the Hot Springs Mining District, in that certain Mineral Certificate No. 3882, recorded February 13, 1908 as Entry No. 232247, in Book V of Mining Deeds, at Page 267 of the Official Records.

[continued on next page]

Parcel S:

From Entry No. 12990210:

The following parcels of land as shown and described in that certain Proposed Boundary Survey prepared by Focus Engineering and Surveying, LLC, having been certified under the date of April 30, 2019, as Job No. 18-339, by Spencer W. Llewelyn, a Professional Land Surveyor holding Certificate No. 10516507 and being more particularly described as follows:

East Parcel

A portion of the SE1/4 of Section 8, the SW1/4 of Section 9 and the NE1/4 of Section 17, Township 1 South, Range 2 East, Salt Lake Base and Meridian, more particularly described as follows:

Beginning at a point on the Northerly Right-of-Way line of Interstate 80 located S86°57'17"E along the Section line 1,322.31 feet and N00°12'13"W along the 1/16th (40 acre) line 931.99 feet from the Southwest Corner of Section 9, T1S, R2E, SLB&M; thence N00°12'13"W along the 1/16th (40 acre) line 379.41 feet; thence S86°59'12"E along the 1/16th (40 acre) line 926.12 feet to the Northerly Right-of-Way line of Interstate 80; thence along said right-of-way the following 4 (four) courses and distances: 1) Southwesterly along the arc of a non-tangent curve to the right having a radius of 3,688.27 feet (radius bears: N40°11'58"W) a distance of 79.50 feet through a central angle of 01°14'06" Chord: S50°25'05"W 79.49 feet; 2) along the arc of a curve to the right having a radius of 1,282.39 feet a distance of 548.31 feet through a central angle of 24°29'52" Chord: S65°10'59"W 544.14 feet; 3) along the arc of a curve to the right having a radius of 3,688.27 feet a distance of 285.86 feet through a central angle of 04°26'27" Chord: S81°33'10"W 285.79 feet; 4) S83°32'04"W 86.19 feet to the point of beginning.

Together with an easement and right of way as granted in that certain Grant of Easement and Right of Way recorded January 8, 2016, as Entry No. 12202539, in Book 10394, at Page 2281 of Official Records.

Composite Parcel

A portion of the SE1/4 of Section 8 and the SW1/4 of Section 9, Township 1 South, Range 2 East, more particularly described as follows:

Beginning at the Southwest corner of Section 9, T1S, R2E, SLB&M; thence N89°41'59"W along the Section line 209.31 feet to the Highway Right-of-Way line of Interstate 80; thence along said right-of-way line the following 12 (twelve) courses: N31°07'22"E 23.94 feet; thence N63°03'29"E 249.83 feet; thence S83°38'20"E 249.92 feet; thence N77°00'13"E 112.55 feet; thence N52°47'16"E 160.14 feet; thence N04° 23'21"W 225.86 feet; thence N77°49'22"E 120.47 feet; thence N83°32'01"E 906.12 feet; thence N87° 54'16"E 243.45 feet; thence N70°43'32"E 708.01 feet; thence N54°29'31"E 136.03 feet; thence N33° 18'26"E 197.33 feet to the 1/4 Section line; thence S00°02'56"W along the 1/4 Section line 1,208.85 feet to the South 1/4 Corner of said Section 9; thence N86°57'17"W along the Section line 2,644.62 feet to the point of beginning.

Less and Excepting therefrom the following described parcel of land:

A portion of the SW1/4 of Section 9, Township 1 South, Range 2 East, more particularly described as follows:

Beginning at a point located S86°57'17"E along the Section line 1,825.02 feet from the Southwest Corner of Section 9, T1S, R2E, SLB&M; thence N75°42'55"E 94.69 feet; thence along the arc of a curve to the right having a radius of 210.00 feet a distance of 160.43 feet through a central angle of 43°46'20" Chord:

[continued on next page]

S82°23'54"E 156.56 feet; thence S60°30'44"E 35.41 feet to the Section line; thence N86°57'17"W along the Section line 278.17 feet to the point of beginning.

Together with Easement for Construction of a Road for Ingress and Egress and Utilities described as follows:

A portion of the SW1/4 of Section 9, Township 1 South, Range 2 East, more particularly described as follows:

Beginning at a point located S86°57'17"E along the Section line 1,825.02 feet from the Southwest Corner of Section 9, T1S, R2E, SLB&M; thence N75°42'55"E 94.69 feet; thence along the arc of a curve to the right having a radius of 210.00 feet a distance of 160.43 feet through a central angle of 43°46'20" Chord: S82°23'54"E 156.56 feet; thence S60°30'44"E 35.41 feet to the Section line; thence N86°57'17"W along the Section line 278.17 feet to the point of beginning.

FURTHER EXCEPTING AND EXCLUDING any portion of the foregoing premises lying within the bounds of Wasatch Boulevard.

FURTHER EXCEPTING AND EXCLUDING any portion of the foregoing premises heretofore conveyed to or condemned by the State Road Commission of Utah for a freeway project known as I-80 and all appurtenant parts thereof as disclosed by various instruments of record.

The following is included for informational purposes only:
Salt Lake County Parcel Nos.
16-24-300-004
16-24-300-005
17-08-400-002
17-08-400-003
17-08-400-006
17-08-400-007
17-08-476-001
17-09-300-004
17-09-300-007
17-09-376-001
17-16-300-001
17-17-200-003
17-17-400-002
17-17-400-004
17-18-300-006
17-18-300-011
17-18-300-012
17-18-400-007
17-18-400-009
17-18-400-010
17-18-400-011
17-19-100-007
17-19-100-008
17-19-100-009
17-19-200-002
17-20-200-003
17-21-100-001